

may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc. § 473(b).

At bar, there is no "judgment, dismissal, order, or other proceeding taken against the party." Plaintiff filed a notice of conditional settlement ("NOS") on August 8, 2025, stating the "settlement agreement conditions dismissal of this matter on the satisfactory completion of specified terms that are not to be performed within 45 days of the date of the settlement" and that a request for dismissal will be filed no later than April 5, 2033. Lo Decl., Ex. 1. The moving papers first state Plaintiff and Defendant came to an agreement on a settlement amount on August 8, 2025 with the first payment being due on September 5, 2025, and Defendant defaulted in payment having not made any payment to Plaintiff since August 8, 2025. Mot., 2:1-4. The motion then states "Plaintiff could not have anticipated Defendant's immediate default of the settlement." Mot., 2:20-21. The motion then reveals, "Defendant was not in agreement with all terms and did not sign." Mot., 2:24-25. Thus, it appears there was never a signed settlement agreement in the first place.

Additionally, even if there were a "judgment, dismissal, order, or other proceeding" to vacate, section 473(b) requires application for relief "shall be made within a reasonable time, in no case exceeding six months...." Code Civ. Proc. § 473(b). At bar, the NOS was filed on August 8, 2025. Plaintiff's motion states, "On 11/17/2025 opposing counsel informed me he was relieved as counsel, where Plaintiff waited to receive defendants [sic] substitution of attorney." Mot., 2:25-26. However, the record reflects Defendant's Substitution of Attorney was filed and served on Plaintiff on November 14, 2025. Plaintiff does not include any explanation as to why she waited over eight (8) more months to file the present motion.

While relief under Code of Civil Procedure § 473(b) would be inappropriate for the reasons set forth above, Rule 3.185 allows the court to restore the case to the civil active list. *Irvine v. Regents of University of California* (2007) 149 Cal.App.4th 994, 1001. "By alleging a dispute over whether the parties reached a binding settlement, plaintiff demonstrated good cause to restore to the civil active list." *Id.* at 1001-1002. "In reaching this conclusion," the court does not consider "whether any of plaintiff's contentions have merit." *Id.* at 1002.

6. CU0002314 Craig Dealon Dowell vs. Jose Valentin Galaz Romero et al
CU0002605 Maria Cota, an individual et al vs. State of California, a public entity
et al

Defendants' Jose Romero and State of California Department of Transportation ("Caltrans") unopposed motion to consolidate for all purposes is GRANTED.

Code of Civil Procedure § 1048 grants discretion to the trial court to consolidate actions involving common questions of law or fact. A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is to avoid unnecessary costs or delay, avoid duplication of procedure, particularly in the proof of issues common to both actions, and avoid inconsistent results by hearing and deciding common issues together. See *Estate of Baker* (1982) 131 Cal.App.3d 471, 485. Each case presents its own facts and circumstances, but the court generally considers the following: (1) timeliness of the motion: i.e., whether granting

consolidation would delay the trial of any of the cases involved; (2) complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury; and (3) prejudice: i.e, whether consolidation would adversely affect the rights of any party. See *State Farm Mut. Auto. Ins. Co. v. Superior Court* (1956) 47 Cal.2d 428, 430–431.

Here, because both CU0002314 and CU0002605 arise out of the same occurrence, involve the same defendants, and involve common questions of fact and law, and because no party opposes the motion, the Court finds consolidation is in the interest of justice and GRANTS the motion.

CU0002314 shall be the lead case. All future filings shall be in that case with captions noting both case numbers and the fact of consolidation. No further filings shall be made in CU0002605.

7. CU0002636 John Lascoe et al vs. Selene Finance LP et al

Attorney John S. Sargetis’ unopposed motion to be relieved as counsel is granted. The order relieving counsel will be deemed effective upon the filing of a proof of service with the Court evidencing both plaintiffs have been served with the order. See California Rules of Court, Rule 3.1362(e).

8. CU0002801 In the Matter of Irina Naduhovskaya

No appearance required. Petitioner is directed to correct the issues below forthwith. The matter is continued to August 24, 2026 at 1:30 p.m. in Dept. A.

- There is no request or order appointing a guardian ad litem in this matter.
- The Petition is illegible due to either how it was scanned or the copy quality of what was filed.
- 5 describes that the minor was struck by the vehicle in the incident, whereas the medical notes state the minor was not struck, but rather her bicycle was struck causing the minor to fall.
- Issues with the Medical Expenses and Net Settlement Amount:
 - 12.a: states medical expenses paid in the amount of \$3,261.58, including \$2,631.87 paid by petitioner, and \$989.71 by private health insurance. This totals \$3,621.58. Correct the total amount paid in 12.a(2).
 - 12.b(f)(ii): states reimbursement is to be made to the plan in the amount of \$989.71.
 - 12.b(5)(b)(D): correct the amount paid as described above.
 - 14.b(1): does not include all medical expenses because it omits the \$989.71 to be reimbursed.
 - 15 and 16: includes the medical expense \$989.71 but omits the medical expense of \$2,631.87 paid by petitioner.
- Attachment 17a: the retainer agreement is attached but not labeled.

The Court also notes a Request for Dismissal was filed on June 30, 2026 stating “dismissal subject to proof of deposit into blocked account.” However, “At no time has this court approved any minor’s compromise in this matter. Such approval is a prerequisite to a valid settlement.”